NOVO NORDISK INC. et al v. DR. REDDY'S LABORATORIES, LTD. et al

Plaintiff:	NOVO NORDISK INC. and NOVO NORDISK A/S
Defendant:	DR. REDDY'S LABORATORIES, LTD. and DR. REDDY'S LABORATORIES, INC.
Case Number:	1:2026cv12228
Filed:	September 16, 2026
Court:	U.S. District Court for the District of New Jersey
Presiding Judge:	Renee Marie Bumb
Referring Judge:	Ethan A Hougah
Nature of Suit:	Patent - Abbreviated New Drug Application(ANDA)
Cause of Action:	35 U.S.C. § 271 Patent Infringement
Jury Demanded By:	None

Date Filed	Document Text
September 16, 2026	**Filing 4** NOTICE of Appearance by LAUREN RUTH MALAKOFF on behalf of NOVO NORDISK A/S, NOVO NORDISK INC. (MALAKOFF, LAUREN)
September 16, 2026	**Filing 3** NOTICE of Appearance by JESSICA K. FORMICHELLA on behalf of NOVO NORDISK A/S, NOVO NORDISK INC. (FORMICHELLA, JESSICA)
September 16, 2026	**Filing 2** Corporate Disclosure Statement by NOVO NORDISK A/S, NOVO NORDISK INC.. (WALSH, LIZA)
September 16, 2026	**Filing 1** COMPLAINT against DR. REDDY'S LABORATORIES, INC., DR. REDDY'S LABORATORIES, LTD. (Filing and Admin fee $ 405 receipt number ANJDC-17947642) , Related Case Selected, filed by NOVO NORDISK INC., NOVO NORDISK A/S. (Attachments: #1 Exhibit 1-3, #2 Civil Cover Sheet, #3 AO 120 Form)(WALSH, LIZA)

I. Executive Summary and Procedural Information

- Parties & Counsel:
  - Plaintiff: Novo Nordisk Inc. (Delaware) and Novo Nordisk A/S (Denmark)
  - Defendant: Dr. Reddy's Laboratories, Ltd. (India) and Dr. Reddy's Laboratories, Inc. (New Jersey)
  - Plaintiff's Counsel: Walsh Pizzi Oreilly Falanga LLP
- Case Identification: 1:26-cv-12228, D.N.J., 09/16/2026
- Venue Allegations: Venue is asserted in the District of New Jersey based on Defendant Dr. Reddy's Laboratories, Inc. being incorporated and having a principal place of business in New Jersey, and Defendant Dr. Reddy's Laboratories, Ltd. being a foreign corporation subject to nationwide jurisdiction.
- Core Dispute: Plaintiff alleges that Defendant's filing of an Abbreviated New Drug Application (ANDA) for a generic version of the WEGOVY® HD drug product infringes three patents related to pharmaceutical compositions of semaglutide and methods of its use for weight management.
- Technical Context: Semaglutide is a GLP-1 receptor agonist, a class of drugs widely used for managing type 2 diabetes and chronic weight management.
- Key Procedural History: This is a Hatch-Waxman action initiated under 35 U.S.C. § 271(e)(2) after Plaintiffs received a Paragraph IV Certification Notice Letter from the Defendants, dated August 4, 2026. The complaint identifies related pending litigation against another generic manufacturer, *Novo Nordisk Inc. et al. v. Apotex Inc.*

Case Timeline

Date	Event
2017-08-24	U.S. Patent No. 12,214,017 Priority Date
2017-10-12	U.S. Patent No. 12,551,536 Priority Date
2020-02-18	U.S. Patent No. 11,318,191 Priority Date
2022-05-03	U.S. Patent No. 11,318,191 Issued
2025-02-04	U.S. Patent No. 12,214,017 Issued
2026-02-17	U.S. Patent No. 12,551,536 Issued

2026-08-04	DRL Sends Paragraph IV Notice Letter
2026-09-16	Complaint Filed

II. Technology and Patent(s)-in-Suit Analysis

U.S. Patent No. 11,318,191 - "GLP-1 Compositions and Uses Thereof"

- Patent Identification: U.S. Patent No. 11,318,191, *"GLP-1 Compositions and Uses Thereof,"* issued May 3, 2022.

The Invention Explained

- Problem Addressed: The patent's background section notes a desire to develop single-use semaglutide compositions that are stable and, critically, comfortable for patients to self-administer, referencing prior art that reported pain upon injection for other phenol-free peptide formulations U.S. Patent 11,318,191, col. 1:21-34
- The Patented Solution: The patent discloses a liquid pharmaceutical composition of semaglutide containing very low or no phenol and a specific concentration of sodium chloride (above 6.4 mg/mL) U.S. Patent 11,318,191, abstract The inventors state they "surprisingly" found that such compositions "have improved properties in relation to injection pain experience" U.S. Patent 11,318,191, col. 1:60-65
- Technical Importance: This technology aims to improve patient compliance and user experience for a self-administered injectable drug by reducing injection site pain, a common barrier to adherence.

Key Claims at a Glance

- The complaint asserts at least independent claims 1 and 15 Compl. ¶¶49, 55
- Independent Claim 1 is a composition claim with the following essential elements:
    - A liquid pharmaceutical composition comprising 0.5 to 10 mg/mL semaglutide
    - 0.0% (w/w) to 0.1% (w/w) phenol
    - and 8.2 to 8.9 mg/mL sodium chloride
- Independent Claim 15 is a method of use claim covering the administration of the composition of claim 1 for treating a group of diseases including diabetes and obesity.
- The complaint reserves the right to assert additional claims Compl. ¶25

U.S. Patent No. 12,214,017 - "GLP-1 Compositions and Uses Thereof"

- Patent Identification: U.S. Patent No. 12,214,017, *"GLP-1 Compositions and Uses Thereof,"* issued February 4, 2025.

The Invention Explained

- Problem Addressed: The patent background states that GLP-1 peptides are "prone to develop lack of stability in liquid solutions," which may include physical or chemical instability U.S. Patent 12,214,017, col. 1:24-30
- The Patented Solution: The patent describes a liquid pharmaceutical composition of semaglutide that specifically "does not contain phenol" and is administered parenterally U.S. Patent 12,214,017, col. 2:18-21 The composition is further defined as an aqueous solution with specific excipients (a buffer or isotonic agent) and a pH between 7.0 and 7.8, a formulation designed to enhance stability U.S. Patent 12,214,017, col. 13:30-44
- Technical Importance: Improving the chemical and physical stability of injectable peptide drugs is a significant challenge in pharmaceutical development, as it is critical for ensuring product shelf-life, safety, and consistent therapeutic potency.

Key Claims at a Glance

- The complaint asserts at least independent claims 1 and 8 Compl. ¶¶78, 84
- Independent Claim 1 is a composition claim with the following essential elements:
    - A liquid pharmaceutical composition comprising semaglutide
    - wherein said composition (a) does not contain phenol
    - and (b) is administered parenterally
    - and (c)(i) is an aqueous solution comprising at least 60% (w/w) water or (ii) further comprises a buffer or an isotonic agent
    - wherein the semaglutide is in the range of 0.01 mg/ml to 10.0 mg/ml
    - and wherein the pH of the composition is in between 7.0 and 7.8
- Independent Claim 8 is a method of use claim covering the administration of the composition of claim 1 for treating obesity.
- The complaint reserves the right to assert additional claims Compl. ¶26

U.S. Patent No. 12,551,536 - "Semaglutide in Medical Therapy"

- Patent Identification: U.S. Patent No. 12,551,536, *"Semaglutide in Medical Therapy,"* issued February 17, 2026.
- Technology Synopsis: The patent addresses the need for improved medical therapies for weight management, particularly those that manage the common gastrointestinal side effects of GLP-1 receptor agonists U.S. Patent 12,551,536, col. 2:21-34 The invention is a method of use involving the administration of a specific high-dose weekly regimen of

semaglutide (2.0-10.0 mg) which is described as providing an improved ratio of body weight reduction to adverse events like nausea U.S. Patent 12,551,536, col. 2:35-41

- Asserted Claims: At least independent claim 1 Compl. ¶107
- Accused Features: The use of the Defendant's ANDA Product according to its proposed label, which allegedly instructs for subcutaneous administration of semaglutide at a dosage up to 7.2 mg once weekly, which falls within the claimed range Compl. ¶¶110, 112

III. The Accused Instrumentality

- Product Identification: The accused instrumentality is Defendant’s Abbreviated New Drug Application (ANDA) No. 221759 Product ("DRL's ANDA Product"), which is a proposed generic version of semaglutide injection, 7.2 mg/0.75 mL, for subcutaneous use Compl. ¶18
- Functionality and Market Context: The complaint alleges that DRL's ANDA Product is an injectable aqueous solution of semaglutide intended for use in weight management, sold in a single-dose pen Compl. ¶¶16, 18 The complaint further alleges that the product's formulation and proposed label "essentially copies" Novo Nordisk's brand-name product WEGOVY® HD and its associated New Drug Application (NDA), as is typical for a generic drug seeking approval via the ANDA pathway Compl. ¶¶58, 87, 116 The product targets the significant commercial market for GLP-1 receptor agonist-based weight-loss therapies Compl. ¶¶10, 12 The complaint provides the structural formula of semaglutide, the active ingredient in the accused product Compl. ¶15, Fig. 1

IV. Analysis of Infringement Allegations

11,318,191 Infringement Allegations

Claim Element (from Independent Claim 1)	Alleged Infringing Functionality	Complaint Citation	Patent Citation
A liquid pharmaceutical composition comprising 0.5 to 10 mg/mL semaglutide	DRL's ANDA Product is a 7.2 mg/0.75 mL solution, which corresponds to a concentration of 9.6 mg/mL, falling within the	¶50; ¶58	col. 25:53-54

	claimed range.		
0.0% (w/w) to 0.1% (w/w) phenol	DRL's ANDA Product is alleged to be identical to WEGOVY® HD, which the complaint describes as not containing phenol as an inactive ingredient, thus having 0% phenol.	¶51; ¶58	col. 25:54-55
and 8.2 to 8.9 mg/mL sodium chloride	DRL's ANDA Product is alleged to be identical to WEGOVY® HD, which contains 8.25 mg of sodium chloride per 1 mL of solution, falling within the claimed range.	¶51; ¶58	col. 25:55-56

12,214,017 Infringement Allegations

Claim Element (from Independent Claim 1)	Alleged Infringing Functionality	Complaint Citation	Patent Citation
A liquid pharmaceutical composition comprising: semaglutide	DRL's ANDA Product is a generic version of semaglutide injection.	¶79; ¶87	col. 13:31-32
wherein said composition (a) does not contain phenol	DRL's ANDA Product is alleged to be identical to WEGOVY® HD, whose formulation does not list phenol as an inactive ingredient.	¶80; ¶87	col. 13:34

and (b) is administered parenterally	DRL's ANDA seeks approval for a product intended for subcutaneous injection.	¶81; ¶87	col. 13:35
and (c)(i) is an aqueous solution comprising at least 60% (w/w) water or (ii) further comprises one or more...excipients...a buffer...	DRL's ANDA Product is alleged to be an aqueous solution identical to WEGOVY® HD, which contains water for injection and disodium phosphate dihydrate, a buffer.	¶80; ¶87	col. 13:36-40
and wherein the semaglutide is in the range of 0.01 mg/ml to 10.0 mg/ml	DRL's ANDA Product has a semaglutide concentration of 9.6 mg/mL, which is within the claimed range.	¶79; ¶87	col. 13:40-42
and wherein the pH of the composition is in between 7.0 and 7.8	DRL's ANDA Product is alleged to be identical to WEGOVY® HD, which has a pH of approximately 7.4.	¶80; ¶87	col. 13:42-44

- Identified Points of Contention:
  - Scope Questions: The infringement allegations for all three patents rely on the assertion that the Defendant's proposed generic product is "identical" or "essentially copies" the formulation and label of the brand-name drug, WEGOVY® HD Compl. ¶¶58, 87, 116 While this forms a basis for literal infringement, the central dispute will likely concern the validity of the patents, which the Defendant challenged in its Paragraph IV certification Compl. ¶22
  - Technical Questions: A key question for the '191 Patent may be whether the specific combination of low/no phenol and a narrow sodium chloride range (8.2 to 8.9 mg/mL) was non-obvious for reducing injection pain. For the '017 Patent,

a technical question may be whether creating a stable, phenol-free formulation of semaglutide was non-obvious to a person of ordinary skill in the art. For the ’536 Patent, a core question will be whether the claimed dosage regimen (2.0-10.0 mg weekly) demonstrated an unexpected improvement in the ratio of weight loss to side effects.

V. Key Claim Terms for Construction

For the ’191 Patent:

- The Term: "comprising"
- Context and Importance: This standard transitional phrase is typically interpreted as open-ended, meaning the composition can include other unlisted ingredients. However, its scope can be a point of contention. Practitioners may focus on this term because if Defendant's product includes additional excipients not listed in claim 1, the defense could argue these additions alter the composition's fundamental character, potentially taking it outside the claim's scope, though this is a difficult argument to win.
- Intrinsic Evidence for Interpretation:
    - Evidence for a Broader Interpretation: The use of "comprising" itself is strong evidence for a standard, open-ended interpretation.
    - Evidence for a Narrower Interpretation: The specification frequently uses the more restrictive phrases "consisting of" and "consisting essentially of" to describe various embodiments (e.g., ’191 Patent, col. 3:5-46). A defendant may argue this pattern suggests the inventors intended a more limited scope for "comprising" than is typical, or that the invention is properly defined by the "consisting of" embodiments.

For the ’017 Patent:

- The Term: "does not contain phenol"
- Context and Importance: This term appears absolute and is central to the infringement allegation against a product that is also alleged to be phenol-free. Practitioners may focus on this term because its interpretation—whether it means an absolute absence or merely "substantially free"—could be critical if the accused product contains trace, non-functional amounts of phenol.
- Intrinsic Evidence for Interpretation:
    - Evidence for a Broader (more absolute) Interpretation: The plain language of claim 1, "does not contain phenol," is an unambiguous negative limitation suggesting a complete absence is required.

- Evidence for a Narrower (less absolute) Interpretation: The abstract of the '017 Patent describes compositions "comprising no more than 0.01% (w/w) phenol," which a defendant could argue provides context that "does not contain" should be interpreted as meaning below a certain functional or detectable threshold, rather than a strict zero.

VI. Other Allegations

- Indirect Infringement: The complaint alleges that upon approval, the Defendant will induce infringement of the method of use claims (e.g., claim 15 of the '191 Patent, claim 8 of the '017 Patent, and claim 1 of the '536 Patent). This allegation is based on the assertion that the Defendant's proposed product label will "essentially cop[y]" the WEGOVY® label and therefore instruct and encourage physicians and patients to use the drug in an infringing manner Compl. ¶¶60, 89, 116
- Willful Infringement: The complaint asserts that the Defendant has "actual knowledge" of the Asserted Patents, citing the Paragraph IV certification Compl. ¶¶47, 76, 105 It further alleges that the Defendant's non-infringement and invalidity positions are "devoid of an objective good faith basis," which lays the groundwork for a claim of enhanced damages under 35 U.S.C. § 284 and attorneys' fees under § 285 Compl. ¶¶71, 100, 126

VII. Analyst's Conclusion: Key Questions for the Case

- A central question for the case will be one of validity and non-obviousness: will the Defendant be able to demonstrate by clear and convincing evidence that the specific formulation parameters claimed in the '191 and '017 patents—such as the narrow sodium chloride range for pain reduction or the complete removal of phenol for stability—were obvious advancements to a person of ordinary skill in the art, rather than patentable inventions?
- A second key issue will be one of induced infringement, particularly for the method-of-use claims in the '536 Patent: does the proposed label for the generic product, alleged to be a copy of the brand-name label, provide instructions that are sufficiently specific to direct prescribers to administer the drug in the high-dose regimen required by the patent claims, thereby establishing the requisite specific intent for inducement?
- A final question will relate to claim construction: can the absolute term "does not contain phenol" in the '017 Patent be interpreted to permit trace, non-functional amounts, potentially creating a non-infringement defense, or does the plain language require a complete absence of the compound?

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IN THE UNITED STATES DISTRICT COURT

FOR THE DISTRICT OF NEW JERSEY

NOVO NORDISK INC. and NOVO NORDIST A/S Plaintiffs, v. DR. REDDY'S LABORATORIES, LTD. and DR. REDDY'S LABORATORIES INC., Defendants.	)	C.A. No._____

Plaintiffs Novo Nordisk Inc. and Novo Nordisk A/S (collectively, "Novo Nordisk"), for their Complaint against Defendants Dr. Reddy's Laboratories, Ltd. and Dr. Reddy's Laboratories, Inc. (collectively, "DRL"), allege as follows:

THE PARTIES

1. Plaintiff Novo Nordisk Inc. ("NNI") is a corporation organized and existing under the laws of the State of Delaware, having its principal place of business at 800 Scudders Mill Road, Plainsboro, New Jersey 08536.

2. Plaintiff Novo Nordisk A/S ("NNAS") is an entity organized and existing under the laws of the Kingdom of Denmark, having its principal place of business at Novo Allé, 2880 Bagsvaerd Denmark. NNI is an indirect, wholly-owned subsidiary of NNAS.

3. On information and belief, Defendant Dr. Reddy's Laboratories, Ltd. is a corporation organized and existing under the laws of India, having its principal place of business at Door No. 8-2-337, Road No. 3, Banjara Hills, Hyderabad, Telangana 500034, India. On information and belief, Dr. Reddy's Laboratories, Ltd. is in the business of making and selling generic pharmaceutical products, which it distributes in the State of New Jersey and throughout the United States.

4. On information and belief, Defendant Dr. Reddy's Laboratories, Inc. is a corporation organized and existing under the laws of the State of New Jersey, having its principal place of business at 107 College Road East, Princeton, New Jersey 08540. On information and belief, Dr. Reddy's Laboratories, Inc. is in the business of making and selling generic pharmaceutical products, which it distributes in the State of New Jersey and throughout the United States.

5. On information and belief, Defendant Dr. Reddy's Laboratories, Inc. is a wholly owned subsidiary of Defendant Dr. Reddy's Laboratories, Ltd.

6. On information and belief, Defendants Dr. Reddy's Laboratories, Ltd. and Dr. Reddy's Laboratories, Inc. acted in concert to prepare and submit Abbreviated New Drug Application ("ANDA") No. 221759 ("DRL's ANDA") to the United States Food and Drug Administration ("FDA").

7. On information and belief, Defendants Dr. Reddy's Laboratories, Inc. and Dr. Reddy's Laboratories, Ltd. collaborate to develop, manufacture, seek regulatory approval for, import, market, distribute, and sell generic pharmaceutical products in the State of New Jersey and throughout the United States.

NATURE OF THE ACTION

8. This action arises under the patent laws of the United States, Title 35, United States Code, § 100 *et seq.*, including 35 U.S.C. §§ 271(a), (b), (c), and (e), arising from DRL's submission of DRL's ANDA by which DRL seeks approval of a generic version of Novo Nordisk's pharmaceutical product WEGOVY® HD (semaglutide) injection prior to the expiration of United States Patent Nos. 11,318,191 ("the '191 Patent"); 12,214,017 ("the '017 Patent"); and 12,551,536 ("the '536 Patent") (collectively, the "Asserted Patents"), which cover, *inter alia*, WEGOVY® HD (semaglutide) injection and/or its use.

9. NNAS is the owner of all rights, title, and interest in the Asserted Patents.

10. NNI is the holder of New Drug Application (“NDA”) No. 215256 for WEGOVY® (semaglutide) injection, for subcutaneous use, administered with 0.25 mg/0.5 mL, 0.5 mg/0.5 mL, 1 mg/0.5 mL, 1.7 mg/0.75 mL, 2.4 mg/0.75 mL, and 7.2 mg/0.75 mL pre-filled single-dose pens, which NNI sells under the trade name WEGOVY®. NNI markets the 7.2 mg/0.75 mL pre-filled single-dose pen as WEGOVY® HD (semaglutide) injection. WEGOVY® and WEGOVY® HD are marketed and sold with common documentation for the prescribing information, instructions for use, and medication guide. NNI holds the exclusive right to sell, distribute, and market WEGOVY® (semaglutide) injection and WEGOVY® HD (semaglutide) injection in the United States.

11. The Asserted Patents are listed in FDA’s Approved Drug Products with Therapeutic Equivalence Evaluations (commonly known as the “Orange Book”) in connection with WEGOVY® HD (semaglutide) injection and the related NDA.

NOVO NORDISK’S WEGOVY® INJECTION

12. The WEGOVY® Label states that “WEGOVY injection is indicated in combination with a reduced calorie diet and increased physical activity: . . . To reduce excess body weight and maintain weight reduction long term in:

    o Adults and pediatric patients aged 12 years and older with obesity.

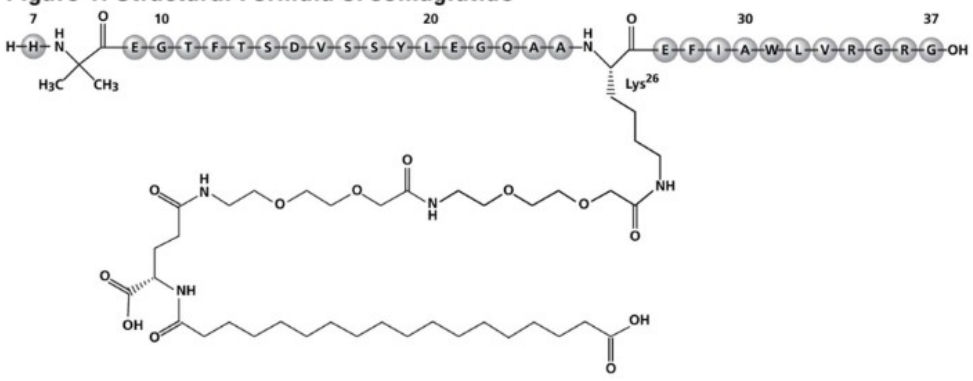
    o Adults with overweight in the presence of at least one weight-related comorbid condition.”

13. WEGOVY® injection is to be administered once weekly by subcutaneous injection.

14. The WEGOVY® Label further instructs to administer WEGOVY® injection once weekly according to a dose escalation schedule that includes an initiating dosage at 0.25 mg of semaglutide for four weeks, 0.5 mg for the next four weeks, 1 mg for the next four weeks, and 1.7 mg for the next four weeks after that. After sixteen weeks, the WEGOVY® Label instructs to administer the maintenance dosage, which for weight reduction in adults “is either 1.7 mg or 2.4 mg (recommended) injected subcutaneously once weekly.” The WEGOVY® Label further instructs, for “patients who tolerate the 2.4 mg dosage for at least 4 weeks and additional weight reduction is clinically indicated, the dosage may be increased to a maximum dosage of 7.2 mg subcutaneously once weekly.”

15. The active ingredient in WEGOVY® is semaglutide and its structure is:

Figure 1. Structural Formula of semaglutide



16. WEGOVY® injection is an aqueous solution administered, among other presentations, with a single-dose pen. Each 0.5 mL single-dose pen contains a solution containing 0.25 mg, 0.5 mg, or 1 mg of semaglutide; and each 0.75 mL single-dose pen contains a solution containing 1.7 mg, 2.4 mg, or 7.2 mg of semaglutide. Thus, each 1 mL of WEGOVY® injection from a single-dose pen contains 0.5 mg, 1 mg, 2 mg, 2.3 mg, 3.2 mg, or 9.6 mg of semaglutide depending on the dosage.

17. The WEGOVY® Label lists 1.42 mg disodium phosphate dihydrate (also known as disodium hydrogen phosphate dihydrate), 8.25 mg sodium chloride, and water for injection as inactive ingredients in each 1 mL of WEGOVY® administered with a single-dose pen. WEGOVY® injection has a pH of approximately 7.4. Hydrochloric acid or sodium hydroxide may be added to adjust pH.

DRL'S ANDA AND PARAGRAPH IV CERTIFICATION

18. On information and belief, Dr. Reddy's Laboratories, Inc., acting as the U.S. agent for Dr. Reddy's Laboratories, Ltd., submitted DRL's ANDA under Section 505(j) of the Federal Food, Drug, and Cosmetic Act ("FFDCA"), i.e., 21 U.S.C. § 355(j), seeking approval to commercially manufacture, use, and/or sell a generic version of semaglutide injection, 7.2 mg/0.75 mL for subcutaneous use, pursuant to DRL's ANDA ("DRL's ANDA Product").

19. On information and belief, Defendant Dr. Reddy's Laboratories, Inc. and Defendant Dr. Reddy's Laboratories, Ltd. acted in concert to prepare and submit DRL's ANDA.

18. On information and belief, following any FDA approval of DRL's ANDA, Defendant Dr. Reddy's Laboratories, Inc. and Defendant Dr. Reddy's Laboratories, Ltd. will act in concert to distribute and sell DRL's ANDA Product throughout the United States, including within New Jersey.

19. On information and belief, DRL's ANDA refers to and relies upon WEGOVY®'s NDA and contains data that, according to DRL, demonstrate the bioequivalence of DRL's ANDA Product and WEGOVY®.

20. On information and belief, DRL made and included in DRL's ANDA a certification under 21 U.S.C. § 355(j)(2)(A)(vii)(IV) ("Paragraph IV Certification") that, in their opinion and to the best of their knowledge, the Asserted Patents are invalid and/or not infringed.

21. Novo Nordisk received written notice of DRL's ANDA and Paragraph IV Certification as to the Asserted Patents ("Notice Letter"), which was dated August 4, 2026, along with an enclosed statement that is required to state all the factual and legal bases for stating that the commercial manufacture, use, or sale of DRL's ANDA Product allegedly will not infringe any valid claim of the Asserted Patents and that the Asserted Patents allegedly are invalid and/or unenforceable (the "Detailed Statement").

22. This action is being commenced within 45 days of receipt of the Notice Letter.

23. DRL has infringed one or more claims of the Asserted Patents under 35 U.S.C. § 271(e)(2)(A) by filing DRL's ANDA with a Paragraph IV Certification and seeking FDA approval of DRL's ANDA before the expiration of the Asserted Patents or any extensions thereof.

24. DRL has infringed one or more claims of the Asserted Patents under 35 U.S.C. § 271(e)(2)(A) by the submission of DRL's ANDA, including any amendments or supplements

thereof, seeking FDA approval to commercially manufacture, use, offer for sale, sell, distribute in, or import into the United States DRL's ANDA Product before the expiration of the Asserted Patents or any extensions thereof.

25. DRL will infringe one or more claims of the Asserted Patents under 35 U.S.C. § 271(a), (b), or (c) should DRL engage in, induce, or contribute to the commercial manufacture, use, offer for sale, sale, distribution in, or importation into the United States of DRL's ANDA Product before the expiration of the Asserted Patents or any extensions thereof.

JURISDICTION AND VENUE

28. This Court has subject matter jurisdiction over this action pursuant to 28 U.S.C. §§ 1331 and 1338(a).

29. This Court has personal jurisdiction over Defendant Dr. Reddy's Laboratories, Inc. by virtue of, *inter alia*, its being incorporated in the State of New Jersey and having a principal place of business in Princeton, NJ, and its having engaged in systematic and continuous contacts with the State of New Jersey; its having previously admitted, consented to, or declined to contest the jurisdiction of this Court; and/or its having previously asserted claims and counterclaims in prior District of New Jersey actions. See, e.g., *AbbVie Inc. et al v. Dr. Reddy's Laby's, Ltd. et al*, Civ. No. 3:25-cv-19039, D.I. 21 (D.N.J. Mar. 24, 2026); *Incyte Corp et al v. Dr. Reddy's Laby's, Inc. et al*, Civ. No. 1:25-cv-17832, D.I. 14 (D.N.J. Mar. 9, 2026); *Pharmacosmos A/S et al v. Dr. Reddy's Laby's, Inc. et al*, Civ. No. 2:25-cv-03967, D.I. 11 (D.N.J. July 14, 2025); *Aurinia Pharms. Inc. v. Dr. Reddy's Laby's, Inc. et al*, Civ. No. 2:25-cv-03693, D.I. 10 (D.N.J. July 7, 2025); *Impax Laby's, LLC v. Dr. Reddy's Laby's, Ltd. et al*, Civ. No. 2:24-cv-07875, D.I. 9 (D.N.J. Nov. 18, 2024); *American Regent Inc. v. Dr. Reddy's Laby's, Inc. et al*, Civ. No. 2:24-cv-07799, D.I. 16 (D.N.J. Aug. 27, 2024); *Vifor (Int'l.) AG et al v. Dr. Reddy's Laby's, Ltd.*, Civ. No. 3:24-cv-06833, D.I. 35 (D.N.J. Sept. 9, 2024).

30. This Court also has personal jurisdiction over Dr. Reddy's Laboratories, Ltd. by virtue of, *inter alia*, its having engaged in systematic and continuous contacts with the State of New Jersey, including but not limited to through its United States subsidiary Dr. Reddy's Laboratories, Inc., which has a principal place of business in Princeton, NJ; its having previously admitted, consented to, or declined to contest the jurisdiction of this Court; and/or its having previously asserted claims and counterclaims in prior District of New Jersey actions. See, e.g., *AbbVie Inc. et al v. Dr. Reddy's Laby's, Ltd. et al*, Civ. No. 3:25-cv-19039, D.I. 21 (D.N.J. Mar. 24, 2026); *Incyte Corp et al v. Dr. Reddy's Laby's, Inc. et al*, Civ. No. 1:25-cv-17832, D.I. 14 (D.N.J. Mar. 9, 2026); *Pharmacosmos A/S et al v. Dr. Reddy's Laby's, Inc. et al*, Civ. No. 2:25-cv-03967, D.I. 11 (D.N.J. July 14, 2025); *Aurinia Pharms. Inc. v. Dr. Reddy's Laby's, Inc. et al*, Civ. No. 2:25-cv-03693, D.I. 10 (D.N.J. July 7, 2025); *Impax Laby's, LLC v. Dr. Reddy's Laby's, Ltd. et al*, Civ. No. 2:24-cv-07875, D.I. 9 (D.N.J. Nov. 18, 2024); *American Regent Inc. v. Dr. Reddy's Laby's, Inc. et al*, Civ. No. 2:24-cv-07799, D.I. 16 (D.N.J. Aug. 27, 2024); *Vifor (Int'l.) AG et al v. Dr. Reddy's Laby's, Ltd.*, Civ. No. 3:24-cv-06833, D.I. 35 (D.N.J. Sept. 9, 2024).

31. Although this Court has personal jurisdiction over Dr. Reddy's Laboratories, Ltd. for at least the reasons set forth above, in the absence of such personal jurisdiction in any single state, a foreign entity such as Dr. Reddy's Laboratories, Ltd. is subject to jurisdiction

throughout the United States. See Fed. R. Civ. P. 4(k)(2); see, e.g., *Genetic Veterinary Scis., Inc. v. LABOKLIN GmbH & Co. KG*, 933 F.3d 1302, 1311–12 (Fed. Cir. 2019); *M-I Drilling Fluids UK Ltd. v. Dynamic Air Ltda*., 890 F.3d 995, 1003 (Fed. Cir. 2018).

32. On information and belief, DRL intends to sell, offer to sell, use, and/or engage in the commercial manufacture of DRL's ANDA Product, directly or indirectly, throughout the United States and in this District. DRL's filing of DRL's ANDA confirms this intention and further subjects DRL to the specific personal jurisdiction of this Court.

33. Defendant Dr. Reddy's Laboratories, Inc. is incorporated in the State of New Jersey and therefore resides in this judicial district. Defendant Dr. Reddy's Laboratories, Ltd. is a foreign corporation not resident in the United States. Thus, venue is proper in this District pursuant to 28 U.S.C. § 1391(b) and (c), and 28 U.S.C. § 1400(b).

THE PATENTS-IN-SUIT

U.S. Patent No. 11,318,191

34. The allegations above are incorporated herein by reference.

35. Novo Nordisk A/S is the owner of all rights, title, and interest in the '191 Patent, entitled "GLP-1 Compositions and Uses Thereof." The USPTO duly and legally issued the '191 Patent on May 3, 2022. The '191 Patent names Dorthe Kot Engelund, Soeren Snitker, and Andrew Mark Louw as inventors. All named inventors assigned the '191 Patent to Novo Nordisk A/S. Novo Nordisk has the right to enforce the '191 Patent and sue for infringement thereof. A true and correct copy of the '191 Patent is attached to this Complaint as Exhibit 1.

36. The '191 Patent claims a liquid pharmaceutical composition comprising 0.5 to 10 mg/mL semaglutide, 0.0% (w/w) to 0.1% (w/w) phenol, and 8.2 to 8.9 mg/mL sodium chloride.

37. The '191 Patent also claims a method of treatment comprising administering to a subject in need thereof a therapeutically effective amount of the liquid pharmaceutical composition comprising 0.5 to 10 mg/mL semaglutide, 0.0% (w/w) to 0.1% (w/w) phenol, and 8.2 to 8.9 mg/mL sodium chloride.

U.S. Patent No. 12,214,017

38. The allegations above are incorporated herein by reference.

39. Novo Nordisk A/S is the owner of all rights, title, and interest in the '017 Patent, entitled "GLP-1 Compositions and Uses Thereof." The USPTO duly and legally issued the '017 Patent on February 4, 2025. The '017 Patent names Eva Horn Moeller, Michael Duelund Soerensen, and Joakim Lundqvist as inventors. All named inventors assigned the '017 Patent to Novo Nordisk A/S. Novo Nordisk has the right to enforce the '017 Patent and sue for infringement thereof. A true and correct copy of the '017 Patent is attached to this Complaint as Exhibit 2.

40. The '017 Patent claims a liquid pharmaceutical composition comprising semaglutide; wherein said composition (a) does not contain phenol; and (b) is administered parenterally; and (c)(i) is an aqueous solution comprising at least 60% (w/w) water or (ii) further comprises one or more pharmaceutically acceptable excipients selected from the group consisting of a buffer or an isotonic agent; and wherein the semaglutide is in the range of

0.01 mg/ml to 10.0 mg/ml; and wherein the pH of the composition is in between 7.0 and 7.8.

U.S. Patent No. 12,551,536

41. The allegations above are incorporated herein by reference.

42. Novo Nordisk A/S is the owner of all rights, title, and interest in the ’536 Patent, entitled “Semaglutide in Medical Therapy.” The USPTO duly and legally issued the ’536 Patent on February 17, 2026. The ’536 Patent names Maria Kabisch and Thomas Hansen as inventors. All named inventors assigned the ’536 Patent to Novo Nordisk A/S. Novo Nordisk has the right to enforce the ’536 Patent and sue for infringement thereof. A true and correct copy of the ’536 Patent is attached to this Complaint as Exhibit 3.

COUNT I

(INFRINGEMENT OF THE ’191 PATENT)

44. The allegations above are incorporated herein by reference.

45. DRL submitted DRL’s ANDA under § 505(j) of the FFDCA to obtain approval to commercially manufacture, use, offer to sell, and sell DRL’s ANDA Product before the expiration of the ’191 Patent, and any extensions thereof.

46. The Notice Letter states that DRL’s ANDA was submitted to obtain approval to manufacture, use, offer to sell, and sell DRL’s ANDA Product before the expiration of the ’191 Patent. The Notice Letter represents that DRL’s ANDA was submitted with a Paragraph IV Certification that the ’191 Patent is “invalid, unenforceable, and/or will not be infringed by the commercial manufacture, use, or sale of the drug products described by DRL’s ANDA.”

47. DRL has actual knowledge of the ’191 Patent.

48. DRL was required to include in its Detailed Statement for each claim of a patent alleged not to be infringed, a full and detailed explanation of why the claim is not infringed. See 21 C.F.R. § 314.95(c)(7).

49. On information and belief, DRL’s ANDA Product is covered by at least claim 1 of the ’191 Patent, and DRL has therefore infringed the ’191 Patent. The Detailed Statement does not allege that the ’191 Patent is unenforceable.

50. The WEGOVY® Label states that each 0.5 mL single-dose pen contains a solution containing 0.25 mg, 0.5 mg, or 1 mg of semaglutide; and each 0.75 mL single-dose pen contains a solution containing 1.7 mg, 2.4 mg, or 7.2 mg of semaglutide. The single-dose pen for WEGOVY® HD contains a solution of 7.2 mg/0.75 mL of semaglutide.

51. The WEGOVY® Label lists 1.42 mg disodium phosphate dihydrate (also known as disodium hydrogen phosphate dihydrate), 8.25 mg sodium chloride, and water for injection as inactive ingredients in each 1 mL of WEGOVY® administered with a single-dose pen. WEGOVY® injection has a pH of approximately 7.4. Hydrochloric acid or sodium hydroxide may be added to adjust pH.

52. The WEGOVY® Label instructs patients to inject each single-dose pen of WEGOVY® HD subcutaneously.

53. The WEGOVY® HD formulation is covered by at least claim 1 of the ’191 Patent.

54. The WEGOVY® Label instructs physicians that “WEGOVY® injection is indicated in combination with a reduced calorie diet and increased physical activity: . . .

- To reduce excess body weight and maintain weight reduction long term in:

  o Adults and pediatric patients aged 12 years and older with obesity.

  o Adults with overweight in the presence of at least one weight-related comorbid condition.”

55. The use of WEGOVY® HD is claimed, among others, in at least claim 15 of the ’191 Patent.

56. Thus, WEGOVY® HD and any corresponding generic semaglutide injection are covered by at least claims 1 and 15 of the ’191 Patent.

57. The ’191 Patent is listed in the Orange Book for WEGOVY® HD.

58. On information and belief, DRL’s ANDA essentially copies the WEGOVY® Label and formulation as required by FDA, see 21 C.F.R. §§ 314.94(a)(8)(iv), 314.94(a)(9)(iii), 314.127(a)(8)(ii)(B), and as such, the liquid pharmaceutical composition in DRL’s ANDA Product is identical to that in WEGOVY® HD.

59. On information and belief, if DRL’s ANDA is approved, DRL will make, use, offer for sale, sell, or import DRL’s ANDA Product in a manner that would infringe at least claims 1 and 15 of the ’191 Patent.

60. On information and belief, DRL’s ANDA essentially copies the WEGOVY® Label as required by FDA, see 21 C.F.R. § 314.94(a)(8)(iv), and therefore instructs, recommends, encourages, promotes, and/or suggests that physicians, prescribers, and/or patients infringe at least claim 15 of the ’191 Patent.

61. On information and belief, if DRL’s ANDA is approved, physicians, prescribers, and/or patients will follow the instructions in the proposed label for DRL’s ANDA Product and thereby infringe at least claim 15 of the ’191 Patent.

62. WEGOVY® HD and any corresponding generic semaglutide injection formulation is not a staple article of commerce and has no substantial approved uses that do not infringe at least claims 1 and 15 of the ’191 Patent. On information and belief, DRL’s ANDA Product is not a staple article of commerce and has no substantial uses that do not infringe at least claims 1 and 15 of the ’191 Patent.

63. DRL has infringed at least claims 1 and 15 of the ’191 Patent under 35 U.S.C. § 271(e)(2)(A) by their submission of DRL’s ANDA to FDA seeking to obtain approval for DRL’s ANDA Product, which is covered by at least claims 1 and 15 of the ’191 Patent, before the expiration of the ’191 Patent.

64. The commercial manufacture, use, offer to sell, sale, distribution, or importation of products under DRL’s ANDA would directly infringe at least claim 1 of the ’191 Patent under 35 U.S.C. § 271(a).

65. The commercial manufacture, use, offer to sell, sale, distribution, or importation of products under DRL's ANDA would infringe directly or contribute to or induce infringement of at least claims 1 and 15 of the '191 Patent under 35 U.S.C. §§ 271(a), (b), and/or (c).

66. Novo Nordisk seeks an order requiring that DRL amend its Paragraph IV Certification in DRL's ANDA to a Paragraph III Certification as provided in 21 C.F.R. § 314.94(a)(12)(viii)(A).

67. Novo Nordisk seeks an order declaring that DRL has infringed at least claims 1 and 15 of the '191 Patent by submitting DRL's ANDA pursuant to 35 U.S.C. § 271(e)(2)(A).

68. Novo Nordisk seeks an order pursuant to 35 U.S.C. § 271(e)(4), including an order that the effective date of any FDA approval of DRL's ANDA be a date that is not earlier than the expiration of the '191 Patent or any later expiration of extensions, adjustments, and exclusivities for the '191 Patent to which Novo Nordisk becomes entitled.

69. Novo Nordisk seeks an order declaring that DRL will infringe at least claims 1 and 15 of the '191 Patent by commercially manufacturing, using, offering to sell, selling, distributing, or importing DRL's ANDA Product before the expiration of the '191 Patent under 35 U.S.C. §§ 271(a), (b), and/or (c).

70. Novo Nordisk will be irreparably harmed if DRL is not enjoined from infringing, actively inducing, or contributing to the infringement of at least claims 1 and 15 of the '191 Patent. Pursuant to 35 U.S.C. § 283 and 35 U.S.C. § 271(e)(4)(B), Novo Nordisk is entitled to a permanent injunction against further infringement. Novo Nordisk does not have an adequate remedy at law.

71. On information and belief, DRL's Detailed Statement setting forth the factual and legal bases for their opinion regarding infringement and validity of the '191 Patent is devoid of an objective good faith basis in the facts or the law. This case is exceptional, and Novo Nordisk is entitled to attorneys' fees pursuant to 35 U.S.C. § 285.

72. To the extent DRL commercializes DRL's ANDA Product prior to the expiration of the '191 Patent, Novo Nordisk will also be entitled to damages under 35 U.S.C. § 284 and 35 U.S.C. § 271(e)(4)(C).

COUNT II

(INFRINGEMENT OF THE '017 PATENT)

73. The allegations above are incorporated herein by reference.

74. DRL submitted DRL's ANDA under § 505(j) of the FFDCA to obtain approval to commercially manufacture, use, offer to sell, and sell DRL's ANDA Product before the expiration of the '017 Patent, and any extensions thereof.

75. The Notice Letter states that DRL's ANDA was submitted to obtain approval to manufacture, use, offer to sell, and sell DRL's ANDA Product before the expiration of the '017 Patent. The Notice Letter represents that DRL's ANDA was submitted with a Paragraph IV Certification that the '017 Patent is "invalid, unenforceable, and/or will not be infringed by the commercial manufacture, use, or sale of the drug products described by DRL's ANDA."

76. DRL has actual knowledge of the ’017 Patent.

77. DRL was required to include in its Detailed Statement for each claim of a patent alleged not to be infringed, a full and detailed explanation of why the claim is not infringed. See 21 C.F.R. § 314.95(c)(7).

78. The Detailed Statement does not provide any separate factual bases for stating that the ’017 Patent will not be infringed by DRL’s ANDA Product apart from arguing that the ’017 Patent is invalid. If DRL had any reasonable basis for asserting that DRL’s ANDA Product is not covered by the claims of the ’017 Patent, DRL was required to provide a full and detailed explanation as to why. Accordingly, on information and belief, DRL’s ANDA Product is covered by at least claim 1 of the ’017 Patent, and DRL has therefore infringed the ’017 Patent. The Detailed Statement does not allege that the ’017 Patent is unenforceable.

79. The WEGOVY® Label states that each 0.5 mL single-dose pen contains a solution containing 0.25 mg, 0.5 mg, or 1 mg of semaglutide; and each 0.75 mL single-dose pen contains a solution containing 1.7 mg, 2.4 mg, or 7.2 mg of semaglutide. The single-dose pen for WEGOVY® HD contains a solution of 7.2 mg/0.75 mL of semaglutide.

80. The WEGOVY® Label lists 1.42 mg disodium phosphate dihydrate (also known as disodium hydrogen phosphate dihydrate), 8.25 mg sodium chloride, and water for injection as inactive ingredients in each 1 mL of WEGOVY® administered with a single-dose pen. WEGOVY® injection has a pH of approximately 7.4. Hydrochloric acid or sodium hydroxide may be added to adjust pH.

81. The WEGOVY® Label instructs patients to inject each single-dose pen of WEGOVY® HD subcutaneously.

82. The WEGOVY® HD formulation is covered by at least claim 1 of the ’017 Patent.

83. The WEGOVY® Label instructs physicians that “WEGOVY® injection is indicated in combination with a reduced calorie diet and increased physical activity: . . .

- To reduce excess body weight and maintain weight reduction long term in:

  o Adults and pediatric patients aged 12 years and older with obesity.

  o Adults with overweight in the presence of at least one weight-related comorbid condition.”

84. The use of WEGOVY® HD is claimed, among others, in at least claim 8 of the ’017 Patent.

85. Thus, WEGOVY® HD and any corresponding generic semaglutide injection are covered by at least claims 1 and 8 of the ’017 Patent.

86. The ’017 Patent is listed in the Orange Book for WEGOVY® HD.

87. On information and belief, DRL’s ANDA essentially copies the WEGOVY® Label and formulation as required by FDA, see 21 C.F.R. §§ 314.94(a)(8)(iv), 314.94(a)(9)(iii), 314.127(a)(8)(ii)(B), and as such, the liquid pharmaceutical composition in DRL’s ANDA Product is identical to that in WEGOVY® HD.

88. On information and belief, if DRL's ANDA is approved, DRL will make, use, offer for sale, sell, or import DRL's ANDA Product in a manner that would infringe at least claims 1 and 8 of the '017 Patent.

89. On information and belief, DRL's ANDA essentially copies the WEGOVY® Label as required by FDA, see 21 C.F.R. § 314.94(a)(8)(iv), and therefore instructs, recommends, encourages, promotes, and/or suggests that physicians, prescribers, and/or patients infringe at least claim 8 of the '017 Patent.

90. On information and belief, if DRL's ANDA is approved, physicians, prescribers, and/or patients will follow the instructions in the proposed label for DRL's ANDA Product and thereby infringe at least claim 8 of the '017 Patent.

91. WEGOVY® HD and any corresponding generic semaglutide injection formulation is not a staple article of commerce and has no substantial approved uses that do not infringe at least claims 1 and 8 of the '017 Patent. On information and belief, DRL's ANDA Product is not a staple article of commerce and has no substantial uses that do not infringe at least claims 1 and 8 of the '017 Patent.

92. DRL has infringed at least claims 1 and 8 of the '017 Patent under 35 U.S.C. § 271(e)(2)(A) by their submission of DRL's ANDA to FDA seeking to obtain approval for DRL's ANDA Product, which is covered by at least claims 1 and 8 of the '017 Patent, before the expiration of the '017 Patent.

93. The commercial manufacture, use, offer to sell, sale, distribution, or importation of products under DRL's ANDA would directly infringe at least claim 1 of the '017 Patent under 35 U.S.C. § 271(a).

94. The commercial manufacture, use, offer to sell, sale, distribution, or importation of products under DRL's ANDA would infringe directly or contribute to or induce infringement of at least claims 1 and 8 of the '017 Patent under 35 U.S.C. §§ 271(a), (b), and/or (c).

95. Novo Nordisk seeks an order requiring that DRL amend its Paragraph IV Certification in DRL's ANDA to a Paragraph III Certification as provided in 21 C.F.R. § 314.94(a)(12)(viii)(A).

96. Novo Nordisk seeks an order declaring that DRL has infringed at least claims 1 and 8 of the '017 Patent by submitting DRL's ANDA pursuant to 35 U.S.C. § 271(e)(2)(A).

97. Novo Nordisk seeks an order pursuant to 35 U.S.C. § 271(e)(4), including an order that the effective date of any FDA approval of DRL's ANDA be a date that is not earlier than the expiration of the '017 Patent or any later expiration of extensions, adjustments, and exclusivities for the '017 Patent to which Novo Nordisk becomes entitled.

98. Novo Nordisk seeks an order declaring that DRL will infringe at least claims 1 and 8 of the '017 Patent by commercially manufacturing, using, offering to sell, selling, distributing, or importing DRL's ANDA Product before the expiration of the '017 Patent under 35 U.S.C. §§ 271(a), (b), and/or (c).

99. Novo Nordisk will be irreparably harmed if DRL is not enjoined from infringing, actively inducing, or contributing to the infringement of at least claims 1 and 8 of the '017 Patent. Pursuant to 35 U.S.C. § 283 and 35 U.S.C. § 271(e)(4)(B), Novo Nordisk is entitled to a

permanent injunction against further infringement. Novo Nordisk does not have an adequate remedy at law.

100. On information and belief, DRL's Detailed Statement setting forth the factual and legal bases for their opinion regarding infringement and validity of the '017 Patent is devoid of an objective good faith basis in the facts or the law. This case is exceptional, and Novo Nordisk is entitled to attorneys' fees pursuant to 35 U.S.C. § 285.

101. To the extent DRL commercializes DRL's ANDA Product prior to the expiration of the '017 Patent, Novo Nordisk will also be entitled to damages under 35 U.S.C. § 284 and 35 U.S.C. § 271(e)(4)(C).

COUNT III

(INFRINGEMENT OF THE '536 PATENT)

102. The allegations above are incorporated herein by reference.

103. DRL submitted DRL's ANDA under § 505(j) of the FFDCA to obtain approval to commercially manufacture, use, offer to sell, and sell DRL's ANDA Product before the expiration of the '536 Patent, and any extensions thereof.

104. The Notice Letter states that DRL's ANDA was submitted to obtain approval to manufacture, use, offer to sell, and sell DRL's ANDA Product before the expiration of the '536 Patent. The Notice Letter represents that DRL's ANDA was submitted with a Paragraph IV Certification that the '536 Patent is "invalid, unenforceable, and/or will not be infringed by the commercial manufacture, use, or sale of the drug products described by DRL's ANDA."

105. DRL has actual knowledge of the '536 Patent.

106. DRL was required to include in its Detailed Statement for each claim of a patent alleged not to be infringed, a full and detailed explanation of why the claim is not infringed. See 21 C.F.R. § 314.95(c)(7).

107. The Detailed Statement does not provide any separate factual bases for stating that the '536 Patent will not be infringed by DRL's ANDA Product apart from arguing that the '536 Patent is invalid. If DRL had any reasonable basis for asserting that DRL's ANDA Product is not covered by the claims of the '536 Patent, DRL was required to provide a full and detailed explanation as to why. Accordingly, on information and belief, DRL's ANDA Product is covered by at least claim 1 of the '536 Patent, and DRL has therefore infringed the '536 Patent. The Detailed Statement does not allege that the '536 Patent is unenforceable.

108. The WEGOVY® Label instructs physicians that "WEGOVY® injection is indicated in combination with a reduced calorie diet and increased physical activity: . . .

- To reduce excess body weight and maintain weight reduction long term in:

  o Adults and pediatric patients aged 12 years and older with obesity.

  o Adults with overweight in the presence of at least one weight-related comorbid condition."

109. The WEGOVY® Label states that the active ingredient in WEGOVY® is semaglutide.

110. The WEGOVY® Label further instructs to administer WEGOVY® once weekly according to a dose escalation schedule that includes an initiating dosage of semaglutide at 0.25 mg for four weeks, 0.5 mg for the next four weeks, 1 mg for the next four weeks, and 1.7 mg for the next four weeks after that. After sixteen weeks, the WEGOVY® Label instructs to administer the maintenance dosage, which for weight reduction in adults "is either 1.7 mg or 2.4 mg (recommended) injected subcutaneously once weekly." The WEGOVY® Label further instructs, for "patients who tolerate the 2.4 mg dosage for at least 4 weeks and additional weight reduction is clinically indicated, the dosage may be increased to a maximum dosage of 7.2 mg subcutaneously once weekly."

111. The WEGOVY® Label instructs patients to inject each single-dose pen of WEGOVY® HD subcutaneously.

112. The use of WEGOVY® HD in accordance with the WEGOVY® Label is claimed in at least claim 1 of the '536 Patent.

113. Thus, the use of WEGOVY® HD and any corresponding generic semaglutide injection is covered by at least claim 1 of the '536 Patent.

114. The '536 Patent is listed in the Orange Book for WEGOVY® HD.

115. On information and belief, if DRL's ANDA is approved, DRL will make, use, offer for sale, sell, or import DRL's ANDA Product in a manner that, when used in accordance with the instructions of the proposed label for DRL's ANDA Product, would infringe at least claim 1 of the '536 Patent.

116. On information and belief, DRL's ANDA essentially copies the WEGOVY® Label as required by FDA, see 21 C.F.R. § 314.94(a)(8)(iv), and therefore instructs, recommends, encourages, promotes, and/or suggests that physicians, prescribers, and/or patients infringe at least claim 1 of the '536 Patent.

117. On information and belief, if DRL's ANDA is approved, physicians, prescribers, and/or patients will follow the instructions in the proposed label for DRL's ANDA Product and thereby infringe at least claim 1 of the '536 Patent.

118. WEGOVY® HD and any corresponding generic semaglutide injection formulation is not a staple article of commerce and has no substantial approved uses that do not infringe at least claim 1 of the '536 Patent. On information and belief, DRL's ANDA Product is not a staple article of commerce and has no substantial uses that do not infringe at least claim 1 of the '536 Patent.

119. On information and belief, DRL has infringed or will infringe at least claim 1 of the '536 Patent under 35 U.S.C. § 271(e)(2)(A) by their submission of DRL's ANDA to FDA seeking to obtain approval for DRL's ANDA Product, which is covered by at least claim 1 of the '536 Patent, before the expiration of the '536 Patent.

120. The commercial manufacture, use, offer to sell, sale, distribution, or importation of products under DRL's ANDA would infringe directly or contribute to or induce infringement of at least claim 1 of the '536 Patent under 35 U.S.C. §§ 271(a), (b), and/or (c).

121. Novo Nordisk seeks an order requiring that DRL amend its Paragraph IV Certification in DRL's ANDA to a Paragraph III Certification as provided in 21 C.F.R. § 314.94(a)(12)(viii)(A).

122. Novo Nordisk seeks an order declaring that DRL has infringed at least claim 1 of the '536 Patent by submitting DRL's ANDA pursuant to 35 U.S.C. § 271(e)(2)(A).

123. Novo Nordisk seeks an order pursuant to 35 U.S.C. § 271(e)(4), including an order that the effective date of any FDA approval of DRL's ANDA be a date that is not earlier than the expiration of the '536 Patent or any later expiration of extensions, adjustments, and exclusivities for the '536 Patent to which Novo Nordisk becomes entitled.

124. Novo Nordisk seeks an order declaring that DRL will infringe at least claim 1 of the '536 Patent by commercially manufacturing, using, offering to sell, selling, distributing, or importing DRL's ANDA Product before the expiration of the '536 Patent under 35 U.S.C. §§ 271(b) and/or (c).

125. Novo Nordisk will be irreparably harmed if DRL is not enjoined from infringing, actively inducing, or contributing to the infringement of at least claim 1 of the '536 Patent. Pursuant to 35 U.S.C. § 283 and 35 U.S.C. § 271(e)(4)(B), Novo Nordisk is entitled to a permanent injunction against further infringement. Novo Nordisk does not have an adequate remedy at law.

126. On information and belief, DRL's Detailed Statement setting forth the factual and legal bases for their opinion regarding infringement and validity of the '536 Patent is devoid of an objective good faith basis in the facts or the law. This case is exceptional, and Novo Nordisk is entitled to attorneys' fees pursuant to 35 U.S.C. § 285.

127. To the extent DRL commercializes DRL's ANDA Product prior to the expiration of the '536 Patent, Novo Nordisk will also be entitled to damages under 35 U.S.C. § 284 and 35 U.S.C. § 271(e)(4)(C).

PRAYER FOR RELIEF

WHEREFORE, Novo Nordisk respectfully requests that this Court enter judgment in their favor against DRL and grant the following relief:

A. An adjudication that DRL has infringed one or more claims of each of the Asserted Patents under 35 U.S.C. § 271(e)(2)(A), by submitting to FDA DRL's ANDA, including any amendments or supplements thereof, to obtain approval for the commercial manufacture, use, offer for sale, sale, distribution in, or importation into the United States of DRL's ANDA Product before the expiration of the Asserted Patents, or any later period of exclusivity to which Plaintiffs are or may become entitled;

B. A judgment declaring that DRL will infringe directly, contribute to the direct infringement of, and/or induce the direct infringement of one or more claims of each of the Asserted Patents under 35 U.S.C. §§ 271(a), (b), and/or (c) if they market, manufacture, use, offer for sale, sell, distribute in, or import into the United States DRL's ANDA Product before the expiration of the Asserted Patents, or any later period of exclusivity to which Plaintiffs are or may become entitled;

C. An order requiring that DRL amend its Paragraph IV certification as to each of the Asserted Patents to a Paragraph III certification as provided in 21 C.F.R. § 314.94(a)(12)(viii)(A);

D. An order pursuant to 35 U.S.C. § 271(e)(4)(A) providing that the effective date of any FDA approval of DRL's ANDA for DRL's ANDA Product be a date that is not earlier than the latest date of the expiration of the Asserted Patents or any later period of exclusivity to which Novo Nordisk is or may become entitled;

E. A permanent injunction enjoining DRL, its officers, agents, servants, employees, attorneys, affiliates, divisions, subsidiaries, and those persons in active concert or participation with any of them from infringing the Asserted Patents or contributing to or inducing anyone to do the same, including the manufacture, use, offer to sell, sale, distribution, or importation of any current or future versions of the product described in DRL's ANDA;

F. An order enjoining DRL, its officers, agents, servants, employees, attorneys, affiliates, divisions, subsidiaries, and those persons in active concert or participation with any of them from infringing the Asserted Patents, contributing to, or inducing anyone to do the same, including the manufacture, use, offer to sell, sale, distribution, or importation of any current or future versions of DRL's ANDA Product;

G. An assessment of pre-judgment and post-judgment interest and costs against DRL, together with an award of such interest and costs, in accordance with 35 U.S.C. § 284;

H. An award to Novo Nordisk of its attorneys' fees incurred in connection with this lawsuit pursuant to 35 U.S.C. § 285; and

I. Such other and further relief as this Court may deem just and proper.

September 16, 2026

/s/ *Liza M. Walsh*
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**Pro hac vice* forthcoming.

LOCAL RULE 11.2 CERTIFICATION

I hereby certify that, to the best of my knowledge, the matter in controversy in this action is related to the following pending litigation in this District: *Novo Nordisk Inc. et al. v. Apotex Inc.*, No. 24-9729-RMB-AMD (D.N.J.) (consolidated).

I hereby certify that, to the best of my knowledge, other than the above-listed proceeding, the matter in controversy is not the subject of or related to any other pending litigations in any court, administrative proceeding, or arbitration proceeding, nor are there any non-parties known to Plaintiffs that should be joined to this action.

Dated: September 16, 2026

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